

BEFORE THE BOARD OF SOCIAL WORK
OF THE STATE OF IOWA

IN THE MATTER OF	)	NO. 10-017
	)	
ELAINA RILEY,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
RESPONDENT.	)	

COME NOW the Iowa Board of Social Work ("Board") and Elaina Riley ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. Respondent is licensed to practice as an independent social worker in the state of Iowa. Respondent was issued Iowa license 01443 on November 12, 1996.
2. The Board filed a Notice of Hearing and Statement of Charges against Respondent on August 13, 2012. A contested case hearing in this matter is scheduled for May 13 and 14, 2013.
3. Respondent's address as reported to the Board is 1334 Burlington Terrace, Des Moines, Iowa 50314.
4. The Board has jurisdiction over the parties and the subject matter.
5. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives her right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final

Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

6. Respondent agrees that the State's counsel may present this agreement to the Board and may have ex parte communication with the Board while presenting it.

7. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order. Respondent does not admit the allegations contained in the Notice of Hearing and Statement of Charges and enters into this Settlement Agreement and Final Order for the sole purpose of resolving this matter to avoid the burden, expense, delay, and uncertainties of a contested case hearing.

8. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party. If this agreement is not approved, settlement discussions and related materials shall not be admissible as evidence in this or any subsequent matters.

9. If approved, this agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

10. If approved, this Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C. The Notice of Hearing and Statement of Charges is also a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 17A, 22 and 272C.

11. The Board's approval of this Settlement Agreement and Final Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

12. Respondent's license shall be placed on probation for a period of one year from the date this agreement is executed, subject to the following terms and conditions:

a. Continuing education. Respondent shall attend ten (10) hours of continuing education in the area of ethics and professional boundaries and ten (10) hours of continuing education in the area of Iowa mandatory reporting requirements within one year from the date this agreement is executed. Such hours shall be in addition to the standard continuing education renewal requirements. Prior to attending the continuing education, Respondent shall submit the name of the course(s), the course instructors, and the course content to the Board for its approval.

b. Practice Mentor. Respondent shall, within thirty (30) days of the date of this agreement, submit the name and curriculum vitae of a proposed practice mentor to the Board for its approval. The proposed practice mentor shall be a licensed independent social worker. The approved practice mentor will be provided a copy of the Notice of Hearing and Statement of Charges and this agreement. Respondent shall meet in a face-to-face setting with the mentor on a quarterly basis during the one year probationary period to review and discuss the Board's administrative rules and issues relative to boundaries, appropriate interactions with clients, treatment plans for minor clients, mandatory reporting obligations, and any other relevant ethical issues which arise in Respondent's practice. All costs associated with the practice mentor shall be

the responsibility of Respondent. The practice mentor shall submit quarterly reports to the Board which include the following:

- i. The time period covered by the report.
- ii. The dates of meetings held with Respondent and a brief summary of the discussion held at each of these meetings.

- iii. Any other information the practice mentor deems relevant for the Board's review.

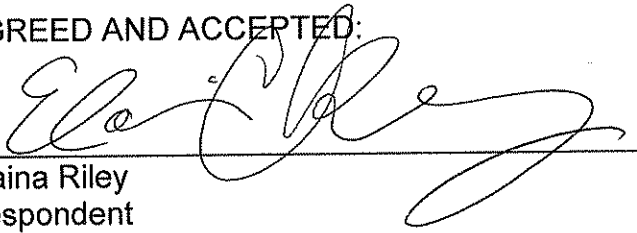
- c. Respondent shall obey all federal, state, and local statutes and regulations governing the practice of social work.

- d. Respondent shall make a personal appearance before the Board upon request. Respondent shall be given reasonable notice of the date, time, and place for appearance.

- e. The period of probation shall terminate following the one-year time period provided that Respondent has fully complied with the terms and conditions for probation set forth in this Settlement Agreement and Final Order.

13. In the event that Respondent violates or fails to comply with any of the terms or provisions of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline as authorized by Iowa Code section 272C.3(2)(a).

AGREED AND ACCEPTED:


Elaina Riley
Respondent

2-4-13
Date

This Settlement Agreement and Final Order is approved by the Board on
2-11, 2013.


Iowa Board of Social Work
Board Chairperson

Copies to:

Sara Scott
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Matthew C. McDermott
Belin McCormick, P.C.
666 Walnut Street, Ste. 2000
Des Moines, IA 50309